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Bills of 2023 | Newsom signs 'sin tax' on guns and ammo

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Editor's note: As 2023 draws to a close, The Signal is presenting CalMatters' wrap-up stories on some of the key bills that reached the governor's desk at the close of the 2023 legislative session. Here's the CalMatters summary of a bill creating a new tax on guns and ammunition.

By Alexei Koseff

CalMatters Writer

Assembly Bill 28 by Assemblymember Jesse Gabriel, a Woodland Hills Democrat, imposes an 11% excise tax on retailers and manufacturers for sales of guns or ammunition.

Modeled on a similar federal levy for wildlife conservation, the tax could bring in an estimated $160 million annually for violence intervention programs, school safety improvements and law enforcement efforts to confiscate guns from people who are prohibited from owning them.

Who Supports It

Facing a higher two-thirds threshold for approval, the measure received widespread backing from Democratic lawmakers who argue that it would provide an essential, steady stream of funding to further California's gun safety efforts. Gun control advocates, physicians and nurses groups, local elected officials and even some police departments also endorsed it.

Who Opposes It

Gun rights groups contend the tax will unfairly burden lawful owners of firearms, particularly sports shooters and hunters who frequently buy ammunition, because businesses will simply pass the cost on to customers. They have suggested they will sue to stop it. Their complaint was echoed by Republicans and some Democrats who spoke against the measure in the Legislature.

Why It Matters

Lawmakers unsuccessfully pursued sales or excise taxes on guns and ammunition half a dozen times over the past decade, some of which never even got a hearing. Gabriel credited a changing political climate for finally pushing the policy through this session — including parents' anxiety over regular active shooter drills at schools and widespread anger over last year's U.S. Supreme Court ruling that tossed long-standing restrictions on carrying concealed weapons.

"The public is demanding this of us," Gabriel told CalMatters. "They are demanding that we have more solutions, that we protect their kids, to protect their communities."

Gov. Gavin Newsom, a vocal proponent of gun safety measures who has repeatedly discouraged legislators from pursuing new taxes in recent years, faced a choice between two key governing principles.

The Governor's Call

Newsom signed the bill Sept. 26 in an event with California Attorney General Rob Bonta, Gabriel and gun safety

advocates. The governor, who has been skeptical of tax increases, said this bill is different and will fund school safety, mental health and other violence prevention programs. "This is not a general income tax," Newsom said. "From my perspective, it's more of a sin tax."

The post Bills of 2023 | Newsom signs 'sin tax' on guns and ammo appeared first on Santa Clarita Valley Signal.

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